IMPARTIAL ANALYSIS OF MEASURE "V"

Overview of Measure V. Measure V is a referendum regarding City of Banning Ordinance No. 1619 which was adopted by the Banning City Council on April 14, 2026, (the "Ordinance"). The Ordinance amends the City's official zoning map and approves a zoning change for property located south of West Westward Avenue and east of Sunset Avenue (generally, the south-east corner of West Westward and Sunset). The Measure was placed on the ballot by a referendum petition signed by the requisite number of voters. If Measure V is approved the Ordinance will become effective. If Measure V is not approved the Ordinance will not become effective.

Ordinance and Zoning Change. The Ordinance amends the City's official zoning map and approves zone change 22-3502 and more specifically applies to Assessor Parcel Numbers (APNs) 537-140-001 through -004, -006 through -012, 537-150-001, -003, and -004, -008 (the "MSJC Site"). The Ordinance changes the zoning for 41 acres of a 49.2-acre site within the jurisdiction of the City from Public Facilities-School to Very High Density Residential.

State law, set forth in California Government Code Section 66300 et seq., requires that the City identify and rezone other land in the City concurrently with adoption of the Sunset Crossroads Project which is implemented in part by Ordinances 1618 and 1620 to ensure 'no net loss' of the City's residential development capacity. To avoid a net loss to the City's residential capacity that would otherwise occur if the Sunset Crossroads Specific Plan Project is approved, the City amended the general plan land use designation and changed the zoning classification of the approximately 41 acres of the MSJC Site to Very High Density Residential, which would permit residential development from 24 to 30 dwelling units per acre, which would create capacity for no less than 1,146 units at the MSJC Site.

If the Ordinance is approved by the voters the City's official zoning map will be amended and the zone change to Very High Density Residential will be approved. If the Ordinance is not approved by the voters the zoning map will not be amended and zoning for the MSJC Site will remain Public Facilities-School.

Summary:

A "Yes" vote by a majority of those voting on Measure V means Ordinance No. 1619 will become effective.

A "No" vote by a majority of those voting on Measure V means Ordinance No. 1619 will not become effective.

The above statement is the impartial analysis of Measure "V." If you desire a copy of the Ordinance or Measure, please call the City Election Official's Office at (951) 922-3102 and a copy will be mailed to you at no cost.

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John O. Pinkney, City Attorney